

Scheme of Rehabilitation Homes for Cured Mentally Ill Persons through Non-Governmental Organizations

Government of Maharashtra

Persons with Disabilities Welfare Department

Government Resolution No.: Divyang-2019/C.R.103/Divyang Kalyan-2

31, 32, 35 A, A Wing, 3rd Floor, Mittal Tower,

Barrister Rajni Patel Marg, Nariman Point,

Mantralaya, Mumbai - 400 021.

Date: 01 September, 2023.

Reference :-

1. Rights of Persons with Disabilities Act, 2016.
2. Mental Healthcare Act, 2017.
3. Orders dated 25th February, 2019 and 01st March, 2019 of the Hon. Supreme Court in Contempt Petition No. 1653/2018 filed therein Shri Gaurav Kumar Bansal Vs. Dinesh Kumar & Others (Original Petition No. 412/2016).

Preamble:-

In the matter of Contempt Petition No. 1653/2018 Shri Gaurav Kumar Bansal Vs. Union of India & Ors. filed in the Hon' Supreme Court, the Hon' Supreme Court, vide order dated 06.07.2021, directed the relocation of cured mentally ill persons as per Mental Healthcare Act, 2017. In this matter, in the meeting held on 23.07.2021 by the Committee constituted under the Chairmanship of the Hon' Chief Secretary vide Government Resolution dated 14.10.2019, directions were given to submit a proposal regarding the establishment of rehabilitation homes and to execute the scheme after taking the approval of the Hon' Cabinet. As per the provisions of Section 24 and 25 under Chapter 5 of the Rights of Persons with Disabilities Act, 2016, it is mentioned that the State Government should establish rehabilitation homes from the perspective of social security and health of persons with disabilities. Also, as per Section 18 under Mental Healthcare Act, 2017, it is stated that it is the responsibility of the appropriate Government, i.e., the Government of Maharashtra, to establish rehabilitation homes in the nature of half-way homes / sheltered accommodation / supported accommodation for cured mentally ill persons who do not require further treatment or cured mentally ill persons who are homeless or cured mentally ill persons whose families do not accept them. Pursuant to these provisions, the matter of framing a scheme for establishing rehabilitation homes through non-governmental organizations for cured mentally ill persons who do not require further treatment or cured mentally ill persons who are homeless or cured mentally ill persons whose families do not accept them was under the consideration of the Government.

Government Resolution :-

Government hereby accords sanction to implement the "Scheme of Rehabilitation Homes for Cured Mentally Ill Persons through Non-Governmental Organizations" for cured mentally ill persons who do not require further treatment or cured mentally ill persons who are homeless or cured mentally ill persons whose families do not accept them.

The terms and conditions of the said scheme shall be as follows :-

Nature of the Scheme :-

- 1. Number of Rehabilitation Homes :-** 16 (Minimum 25 intake capacity)
- 2. Location of Rehabilitation Homes :-** The said rehabilitation homes shall be located near the Government Regional Mental Hospitals currently run by the State Government at Thane, Pune, Nagpur, and Ratnagiri.
- 3. Admission Criteria for Rehabilitation Homes :-**
 - A. For admission to the said rehabilitation home, the management of any rehabilitation home shall not discriminate on the basis of caste, religion, race, etc.
 - B. Patients who recover from mental illness as per Section 85 to 99 under Mental Healthcare Act, 2017 from Government or Semi-Government Mental Hospitals and such cured mentally ill persons who do not require further treatment or cured mentally ill persons who are homeless, or cured mentally ill persons whose families or relatives accepting them would be the best option, but if their families do not accept them, then for such persons, based on the certificate issued by the Medical Officer of the concerned Regional Mental Hospital certifying that they are eligible for rehabilitation, the Head of the concerned Rehabilitation Home shall grant admission to the concerned cured mentally ill person in the said rehabilitation home.
 - C. Admission process in the said rehabilitation home shall remain limited to the proportion of available seats. If seats are not available in the concerned rehabilitation home, admission shall be given in the rehabilitation home of the nearest division.
 - D. However, under any circumstances, no cured mentally ill person shall be given direct admission into such rehabilitation home through a private mechanism.
- 4. Criteria for Discharge/Release from Rehabilitation Home :-**
 - A. The primary responsibility of the said rehabilitation home shall be to rehabilitate the cured mentally ill person admitted in the said rehabilitation home into his / her family. Under this, the mechanism of the rehabilitation home, with the assistance of the concerned Regional Mental Hospital and police mechanism, shall track down the family or relatives of the concerned cured mentally ill person who can take custody and look after him / her, and take action to hand over the concerned cured mentally ill person to the concerned family or relatives.
 - B. In respect of inmates for whom action could not be taken as per paragraph A above, who are to be discharged from the rehabilitation home for rehabilitation in an environment outside the rehabilitation home,

is to be done, regarding the period spent by that inmate in the rehabilitation home, treatment, therapy, training received during that period, whether the inmate has acquired the capacity to stand on his/her own feet and earn a livelihood after release in society, behavior of the inmate regarding the staff in the rehabilitation home, etc., taking into consideration various records in the rehabilitation home as well as based on the joint and self-explicit opinion of Psychiatrist, Occupational Therapist, and Social Worker, the Head of the Rehabilitation Home shall issue orders releasing the concerned inmate from the rehabilitation home.

5. Responsibilities of Management of Concerned Rehabilitation Homes After Release :-

- A. After the concerned person is released under the above process from the rehabilitation home, the responsibility of comprehensive follow-up and action regarding other incidental arrangements of him/her shall lie with the concerned rehabilitation home.
- B. After release, the inmate shall spend his/her life under the supervision of the staff of the concerned rehabilitation home, and the Social Worker shall submit an inquiry report to the rehabilitation home every 03 months or whenever necessary regarding the behavior of the concerned inmate in society, in the family, where he/she works, and to the colleagues in the office.
- C. If under the said inquiry report it comes to notice that the concerned inmate requires treatment, the Head of the concerned rehabilitation home shall apply to the Medical Officer of the adjacent Regional Mental Hospital for re-admission of the concerned inmate, submit the necessary report, and take action to admit the concerned inmate to the Regional Mental Hospital for treatment. After the concerned inmate recovers and becomes eligible for rehabilitation, the concerned Medical Officer shall also take action to re-admit him/her to the concerned rehabilitation home.
- D. In case an inmate in a rehabilitation home or an inmate who has been rehabilitated outside the rehabilitation home meets with an accident or suffers serious injury due to any other reason, or if the person goes missing or dies, the concerned Head of the Home shall take necessary measures within 24 hours and inform all concerned authorities about the same in writing.

6. Facilities, Training, etc. to be provided to Inmates by Rehabilitation Home :-

- A. **Training** :- Assessing the interest and inclination of the concerned inmate, emphasizing the development of personal skills, conducting continuous activity programs (Engaging Activity) for inmates, as well as conducting skill-based development programs and training for inmates, so that the inmate released from the rehabilitation home gets a means of livelihood.
- B. **Rehabilitation** :- Planning rehabilitative programs to bring potential released inmates into the main stream of society as well as to make them self-reliant, and taking measures. This will include socialization of the concerned inmate, agricultural training, household maintenance, cleanliness, training appropriate to the times such as Data Entry Operator.

- C. **Counseling** :- Conducting individual counseling as well as group counseling of all inmates in the rehabilitation home through counseling methods, and making efforts for training and rehabilitation according to the progress of each inmate.
- D. **Medical Treatment** :- For inmates admitted in mental hospitals, continuing the ongoing treatment method in the rehabilitation home as per requirement, and keeping all types of medicines available as per the requirement of the inmate. Using various therapies, etc.
- E. **Accommodation** :- Making independent accommodation arrangements for boys, girls, women, men, elderly women, and elderly men, arranging independent accommodation with a minimum of two or maximum of four beds in a minimum of one room, providing all amenities/facilities in accommodation rooms as per inmates, making independent arrangements for bathrooms and toilets.
- F. **Food** :- It shall be mandatory for the management to provide nutritious food to inmates in the rehabilitation home. This will include morning tea/milk and breakfast, afternoon lunch, evening snacks, and night dinner. As per the demand of inmates, vegetarian (which includes sweet dishes) and non-vegetarian food once a week must be provided. Keeping dining hall and kitchen independent, providing necessary food utensils and facilities according to the number of inmates in both homes, e.g. plate, bowl, glass, cooking utensils, gas, food grain container, etc.
- G. **Sports and Entertainment** :- Implementing mental development programs through recreational facilities, various sports equipment, yoga, vipassana in the rehabilitation home for inmates.
- H. **Cleanliness, Nursing and Care** :- Taking necessary care of adolescent girls and women during their menstrual cycle. Also maintaining cleanliness of rehabilitation center, kitchen room, dining hall, place of residence, toilets, etc. Apart from this, taking necessary nursing and care of sick inmates through caregivers.
- I. **Protection** :- Keeping the premises of the rehabilitation home properly protected with wire fencing or RCC wall. Taking precaution that no injury or harm is caused to co-inmates or staff in the rehabilitation home by inmates in the rehabilitation center.
- J. **Establishing Inter-connection and Coordination with Government and Semi-Government Departments** :- To get the benefit of necessary amenities/facilities under the training and rehabilitation program determined for release from the rehabilitation home, the management of the rehabilitation home shall maintain contact and coordination with nearby various Government and Semi-Government offices. In this manner, the liability of the rehabilitation home towards the inmates shall remain.

7. Admission Capacity of Rehabilitation Homes :-

1. Rehabilitation Homes for Adults - Age Group 18 to 55

A. Male - Minimum admission capacity of each home - 25
Total Homes - 04

B. Female - Minimum admission capacity of each home - 25
Total Homes - 04

2. Rehabilitation Homes for Senior Citizens - Age Group 55 and above

A. Male - Minimum admission capacity of each home - 25

Total Homes - 04

B. Female - Minimum admission capacity of each home - 25

Total Homes - 04

Clarification regarding Cured Mentally Ill Children below 18 years of age :-

As per Section 18, Sub-section 4, Clause (e) under Mental Healthcare Act, 2017, there is a provision to provide necessary services regarding cured mentally ill children. Accordingly, regarding this scheme, it is hereby clarified that in respect of cured mentally ill children below 18 years of age, as per the provisions under the Juvenile Justice Act, 2015, action through the Child Welfare Committee shall be necessary regarding placing them in Government institutions under the jurisdiction of the Women and Child Development Department of the State Government.

8. Number of Rehabilitation Homes.

In the first phase, a total of 16 Rehabilitation Homes are being established at Nagpur, Pune, Thane, and Ratnagiri, with four homes each for Males (Adult & Senior) and Females (Adult & Senior). In subsequent phases, rehabilitation homes will be established according to necessity and requirement. Taking into consideration the increasing number of cured mentally ill persons as per the recommendation of the concerned Regional Mental Hospital, the number of rehabilitation homes and the number of persons may be increased from time to time through the Department as per requirement.

9. Geographical Limits of Rehabilitation Homes :-

It shall remain within the district boundaries of the headquarters of Regional Mental Hospitals in the cities of Nagpur, Pune, Thane, and Ratnagiri.

10. Grant-in-aid sanctioned per beneficiary / inmate to Non-Governmental Organization :-

For Non-Governmental Organizations running rehabilitation homes, financial grant-in-aid of approximately Rs. 12,000/- per person per month shall be sanctioned for items such as staff honorarium, food, personal amenities, medical and personal hygiene expenses, recreational facilities, contingency expenses, furniture per inmate, utensils, bed, bedding - blankets, cooking utensils, other useful material, incidental services, as well as building rent, etc. in the rehabilitation home.

11. Beneficiaries of the Scheme :-

Cured mentally ill persons above 18 years of age certified for rehabilitation by the Medical Superintendent of the concerned Regional Mental Hospital, who do not require further treatment or who are homeless or whose family or relatives do not accept them.

12. Administrative Department Controlling the Scheme :-

The said scheme shall remain functional under the control of the Persons with Disabilities Welfare Department.

13. Supervision and Monitoring Officers of the Scheme :-

The Commissioner, Persons with Disabilities Welfare, Maharashtra State, Pune and the Director, Health Services & National Health Mission, Mumbai shall jointly remain the supervising and monitoring officers.

14. Contact and Control Officers :-

The concerned District Social Welfare Officer, Zilla Parishad and the concerned Medical Superintendent, Regional Mental Hospital shall jointly remain contact and control officers.

15. Implementation Agency of the Scheme :-

Non-Governmental Organizations possessing a valid registration certificate to run a rehabilitation home registered as a Public Company under the Rights of Persons with Disabilities Act, 2016, Mental Healthcare Act, 2017, Societies Registration Act, 1860, Maharashtra Public Trusts Act, 1950, or Companies Act, 2013 shall be the implementing agency for this scheme.

16. Procedure for Selection of Eligible Organizations :-

1. For selecting eligible organizations for implementation of the said scheme, a State-Level Selection Committee shall be as follows:
 - A. Additional Chief Secretary / Principal Secretary / Secretary, Persons with Disabilities Welfare Department - Ex-Officio Chairman
 - B. Commissioner, Persons with Disabilities Welfare Commissionerate, Maharashtra State, Pune - Member
 - C. Commissioner, Health Services and Director, National Health Mission, Mumbai - Member
 - D. Joint Secretary / Deputy Secretary, Finance Department - Member
 - E. Joint Secretary / Deputy Secretary, Public Health Department - Member
 - F. Joint Secretary / Deputy Secretary, Persons with Disabilities Welfare Department - Member Secretary
2. Proposals from eligible organizations shall be invited by the Persons with Disabilities Welfare Department of the Government by issuing advertisements through public notice media / releasing public notices on the official website of the Government.
 - I. Scrutiny and verification of received proposals shall be carried out by the Committee.
 - II. Accordingly, selection of eligible organizations shall be done by the said Committee as per merit/markings, and accordingly, the decision of the said Committee shall be final.
 - III. After selection of eligible organizations, Government Resolution shall be issued by the Department.
 - IV. It shall be binding on the concerned organization to start the said initiative within the prescribed time limit mentioned in the Government Resolution. If the said initiative is not started within the prescribed time limit, the selection of the said organization shall be cancelled by the Department without any prior notice. Thereafter, action shall be taken from the Government level to give opportunity to run the concerned rehabilitation home to the organization standing first, second, third in order of merit in the waiting list.
 - V. After selection of the organization, a Memorandum of Understanding (MoU) shall be executed between the organization and the Government regarding the operation of the rehabilitation home.
 - VI. The validity period of the said waiting list shall not exceed one year under any circumstances.

17. Criteria for Selection of Organizations :-

A) The following terms and conditions shall apply to non-governmental organizations desirous of running the Rehabilitation Home Scheme for cured mentally ill persons through non-governmental organizations:

- i. It is mandatory for the organization to possess a registration certificate as a registered Non-Governmental Organization running a rehabilitation home as a Public Company under the Societies Registration Act, 1860, Maharashtra Public Trusts Act, 1950, or Companies Act, 2013.
- ii. It is mandatory for the organization desirous of running a rehabilitation home to possess a valid registration certificate issued by a competent authority as per provisions under the Rights of Persons with Disabilities Act, 2016 and Mental Healthcare Act, 2017.
- iii. The organization implementing the said scheme should not be working for the personal gain of any individual/organization.
- iv. It is mandatory for the concerned organization to have at least three years of working experience in the field of mental health.
- v. It is mandatory that the Income Tax Returns for the last three years of the organization and the audit report are certified by a competent and authorized Chartered Accountant.
- vi. The financial position of the organization should be good. If for any reason there is a delay in receiving Government grant, the organization should be financially competent to bear the expenses of the rehabilitation home. For this purpose, it is mandatory to have a Bank Guarantee of at least Rs. Ten Lakhs in the name of the organization.
- vii. It is mandatory that the area of operation of the organization desirous of implementing the said scheme is Maharashtra State.
- viii. It is mandatory for the organization to be registered on the NITI Aayog Portal.
- ix. The organization granted approval to run a rehabilitation home under this scheme must obtain a valid registration certificate from a competent authority under the Food and Drug Administration Department of the Government within 6 months from the date of the approval order. If the certificate is not obtained within the prescribed time limit, the approval granted for the rehabilitation home to the concerned organization shall be deemed cancelled without giving any prior notice, and action shall be taken to grant the same to the senior-most organization in order of merit in the waiting list. Thereafter, no claim of the original organization shall be considered.
- x. For implementing the said scheme, as per the guidelines dated 18.08.2017 of the Central Government, it is mandatory for the organization to fulfill the following criteria regarding necessary amenities, trained staff, and other incidental facilities for a rehabilitation home having a minimum capacity of 25 inmates:

B) Criteria:

The rehabilitation home must be located outside the premises of the mental hospital.

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- A. The building in which the organization runs the said initiative should not have more than maximum two floors.
- B. The building of the said initiative must be protected with a protective wall.
- C. The building of the said initiative must be accessible (barrier-free) and must fulfill basic protective measures against lightning.
- D. Separate and independent accommodation arrangements must be made for women and men inmates.
- E. It is necessary to have a self-explicit policy regarding entry and exit (Entry and Exit) in the building of the rehabilitation home.

1) Adopting the criterion of 25 inmates, it is mandatory for the organization to have available 15 staff members (with required educational qualifications) as follows: Rehabilitation Home Head - 01 post (Superintendent), Office Assistant - 01 post (Junior Clerk cum Accountant), Social Worker - 01 post (Rehabilitation Social Worker cum Employment Officer), Vocational Instructor - 01 post (Instructor), Trained Caregiver - 02 posts (Caregiver), Helper - 02 posts (Helper), Psychiatrist - 01 post (Semi-Medical Officer), Occupational Therapist - 01 post (Instructor), Nurse - 01 post (Nurse), Cook - 01 post (Cook), and Cook Helper - 01 post (Cook Helper), Watchman / Guard / Security Guard - 02 posts (Watchman). The educational qualifications of posts mentioned outside brackets above shall remain as specified inside the brackets. The posts inside brackets are as per Government Resolution No. EDD-2003/C.R.340/Part-3/Sudhar-2, dated 18.08.2004 of the Social Justice, Cultural Affairs, Sports and Special Assistance Department. The minimum expected duties and responsibilities of these posts shall be as per the attached annexure. (It shall be mandatory to appoint female staff for Rehabilitation Homes for females.) The organization granted approval to run a rehabilitation home under this scheme must appoint the above staff at the organization level within 02 months from the date of the approval order. If the appointment of staff on the required posts is not done by the organization within the prescribed time limit, the approval of the rehabilitation home granted to the concerned organization shall be deemed cancelled without giving any prior notice, and action shall be taken to grant the rehabilitation home to the senior-most organization in order of merit in the waiting list. Thereafter, no claim of the original organization shall be considered.

Depending on the case, the Committee shall have the power to relax the criteria under A and B above.

18. Criteria for Granting Benefits Under the Scheme :-

As per the guidelines dated 18.08.2017 bearing No. 29-01/2017-DD.III of the Central Government, cured mentally ill persons aged 18 years and above who have undergone treatment in Regional Mental Hospitals shall be granted admission to rehabilitation homes. However, if no other alternative is available for such persons, their stay in the rehabilitation home shall be kept permanent.

19. Process for Submitting Proposals for Rehabilitation Home Scheme :-

1. Public notices inviting proposals from eligible and desirous organizations for setting up rehabilitation homes in Nagpur, Pune, Thane, and Ratnagiri districts should be issued by the Persons with Disabilities Welfare Commissionerate.
2. Desirous organizations should submit complete proposals to the concerned District Social Welfare Officer, Zilla Parishad within the prescribed time limit.
3. In connection with the proposals submitted by the said desirous organizations, both officers, i.e., the District Social Welfare Officer, Zilla Parishad and the Medical Superintendent, Regional Mental Hospital, shall jointly inspect the proposals and submit the inspection report along with evaluation and grading to the Commissioner, Persons with Disabilities Welfare, Maharashtra State, Pune.
4. The Commissioner, Persons with Disabilities Welfare, Maharashtra State, Pune shall verify that the received proposals are complete as per the terms and conditions in the guidelines of the Central Government, satisfy themselves by visiting if required, and submit the proposal to the Government with explicit recommendations.
5. The proposals received by the Government from the Persons with Disabilities Welfare Commissionerate shall be analyzed by the Selection Committee constituted under the Chairmanship of Additional Chief Secretary / Principal Secretary / Secretary, Persons with Disabilities Welfare Department, based on the evaluation and grading in the inspection report submitted by the inspection officers, and eligible non-governmental organizations shall be selected.
6. The names of organizations selected by the Selection Committee shall be made available on the Government website through prescribed Government Resolutions issued by the Government.

20. Disbursement Mechanism and Head of Account for Funds :-

Drawing and Disbursing Officer: To implement this scheme and draw and disburse funds, the District Social Welfare Officers of Zilla Parishads of the concerned districts are declared as Drawing and Disbursing Officers. Necessary grants for the said rehabilitation homes shall be sanctioned by the Government. Taking into consideration the admissibility of grant for the concerned rehabilitation home under this scheme, the admissible grant for every 3 months shall be disbursed once every 3 months into the bank account of the concerned NGO through DBT system.

21. Head of Account of the Scheme :-

Until a separate Head of Account is made available by the Government for the implementation of this scheme, grants shall be made available by the Government under the currently existing Head of Account for the Intellectually Disabled category - (08) (05) Assistance to Non-Government Institutions working for the Mentally Ill (Scheme) Head of Account 2235D301, 31- Grant-in-Aid (Non-Salary).

The Commissioner, Persons with Disabilities Welfare, Maharashtra State, Pune is declared as the Drawing and Disbursing Officer in this matter, and he/she or an officer authorized by him/her is authorized to sign the bills.

2. "Scheme of Rehabilitation Homes for Cured Mentally Ill Persons through Non-Governmental Organizations"

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Implementation of this (Rehabilitation Homes For Mentally ill Persons) program/scheme or project will be useful in achieving Sustainable Development Goal No. 10 - Reduce Inequality, Target No. 10.2: By 2030, empower and promote the social, economic, and political inclusion of all, irrespective of age, sex, disability, race, ethnicity, origin, religion, or economic or other status by 2030.

3. This Government Resolution is being issued in accordance with the decision taken in the Cabinet meeting held on 13th June, 2023.

4. This Government Resolution has been made available on the Government of Maharashtra website www.maharashtra.gov.in and its computer code number is 202309011752106535. This Government Resolution is being issued with a digital signature.

By order and in the name of the Governor of Maharashtra.

Digitally signed by VISHNUDAS PUNDLIKRAO GHODKE

Date: 2023.09.01 18:00:10 +05'30'

(V. P. Ghodke)

Deputy Secretary, Government of Maharashtra

Copy to,

1. Hon. Secretary to the Governor, Raj Bhavan, Malabar Hill, Mumbai.
2. Hon. Principal Secretary to the Chief Minister, Mantralaya, Mumbai.
3. Hon. Secretary to the Deputy Chief Minister, Mantralaya, Mumbai.
4. Hon. Leader of Opposition, Legislative Assembly / Legislative Council, Vidhan Mandal, Mumbai.
5. Hon. All Members of Legislative Assembly / Legislative Council, Vidhan Mandal Secretariat, Mumbai.
6. Hon. Chief Secretary, Mantralaya, Mumbai.
7. Additional Chief Secretary / Principal Secretary / Secretary, All Departmental Secretariats, Mumbai.
8. Commissioner, Persons with Disabilities Welfare, Commissionerate, Pune.
9. All District Collectors, District Collector Offices.
10. All Commissioners, Municipal Corporations.
11. All Chief Executive Officers, Zilla Parishads.
12. Principal Accountant General (A&E), Maharashtra-1, Mumbai.
13. Principal Accountant General (Audit), Maharashtra-1, Mumbai.
14. Resident Audit Officer, Mumbai.
15. District Treasury Officers (All).
16. Pay and Accounts Officer, Mumbai.
17. Regional Deputy Commissioner, Social Welfare Office (All).
18. Assistant Commissioner, Mumbai City / Suburban Mumbai.
19. District Social Welfare Officer (All), Zilla Parishad.
20. All concerned Members of the Committee (through Commissionerate of Persons with Disabilities Welfare).

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21. Bharatiya Janata Party, Maharashtra Pradesh, C.D.O. Barrack No. 1, Opposite Yogakshema, Vasantao Naik Chowk, Nariman Point, Mumbai 400 021,
22. Indian National Congress, Maharashtra Pradesh, Congress (I) Committee, Tilak Bhavan, Kakasaheb Gadgil Marg, Dadar, Mumbai 400 025,
23. Nationalist Congress Party, Rashtrapati Bhavan, Free Press Journal Marg, Nariman Point, Mumbai 400021,
24. Shiv Sena, Shiv Sena Bhavan, Gadkari Chowk, Dadar, Mumbai 400 028,
25. Bahujan Samaj Party, Maharashtra Committee, Janashakti Hall, Globe Mill Palace, Worli, Mumbai 400013,
26. Communist Party of India, Maharashtra Committee, Janashakti Hall, Globe Mill Palace, Worli, Mumbai 400 013,
27. Communist Party of India (Marxist), Maharashtra Committee, Janashakti Hall, Globe Mill Palace, Worli, Mumbai - 13,
28. Maharashtra Navnirman Sena, Rajgad, Matoshree Tower, Shivaji Park, Dadar, Mumbai - 4700 028,
29. Select File / Divyang Kalyan-2.

Minimum Duties and Responsibilities of Staff in Rehabilitation Homes.

Sr. No.	Designation	Responsibilities and Duties
A)	Rehabilitation Home Section	
	1) Rehabilitation Home Head	Responsibilities :- 1. To supervise and control all work of the rehabilitation home. 2. To carry out work by maintaining coordination with the concerned administrative department / office / others. 3. To maintain the standard of the rehabilitation home properly and improve it from time to time as required. 4. To organize training programs and assist in conducting them. 5. To carry out the process of granting admission to inmates in the home and maintain discipline in the rehabilitation home. 6. To maintain account of expenditure of the rehabilitation home. 7. To handle all correspondence related to the rehabilitation home. 8. To organize training-related follow-up programs for inmates, supervise them, and maintain records. 9. To comply with the rules, regulations of the Government as well as other orders given by the Government and administrative orders issued by the management of the institution from time to time. 10. To evaluate the work of assistant staff and keep service books of employees in the rehabilitation home updated. 11. To ensure that training and rehabilitation programs for inmates in the rehabilitation center are properly conducted by medical and semi-medical expert persons. 12. To perform organizational work of the institution as assigned by the management from time to time as well as

any other administrative work.

Duties :-

1. Duties regarding training - To take care that all inmates in the rehabilitation home receive competent and effective skill training.
2. He / She shall present himself / herself at the rehabilitation home on time. Remaining present during the prescribed hours of the rehabilitation home, he / she shall focus full attention on the work of the rehabilitation home and shall not do any private work during rehabilitation home hours.
3. The responsibility of regulating and controlling the work of Vocational Instructors and ensuring that the standard of training in the rehabilitation home remains good shall lie with him/her.
4. The responsibility of laying down broad guiding principles for planning and evaluation of training shall lie with him/her.
5. The responsibility of making available skill-based training material in consultation with the management of the institution shall lie with him/her.
6. The Head of the Rehabilitation Home shall be responsible for continuous, all-round rehabilitation of resident inmates in the rehabilitation home.
7. He / She shall uncomplainingly perform any duties determined by the competent authority / management regarding training and rehabilitation of inmates.

Duties regarding administrative matters :-

1. He / She shall be responsible to the Government and management to ensure smooth and efficient functioning of the rehabilitation home.
2. Upon application by an inmate requesting leave from the rehabilitation home for a few days, making a note in the general logbook and granting leave from the rehabilitation home on the advice of the Psychiatrist.

	3. Upon application by an inmate or his/her guardian requesting discharge from the rehabilitation center, making an entry in the discharge register and granting discharge from the rehabilitation center as per explicit opinion of the Psychiatrist and in alignment with rules issued by the Health Department. However, after giving such discharge, taking periodic reviews of the behavior of the concerned inmate in society, place of work, with colleagues, and recording the same in the case file of the concerned inmate. 4. Determining the number of working days and holidays every year as per the prescribed timetable framework and preparing the timetable for training in the rehabilitation center. 5. The responsibility of maintaining all logbooks and records of the rehabilitation center in a proper manner shall lie with him/her. 6. He / She shall inculcate habits of cleanliness and tidiness among inmates in his/her rehabilitation center and shall be responsible for their conduct and discipline, and also if any instance of misconduct or breach of discipline among assistant staff comes to notice, immediately inform the management and Government. 7. He / She shall supervise, control, and coordinate the work of his/her assistants and if any instance regarding their efficiency or breach of discipline comes to notice, immediately inform the management and Government. 8. Maintaining a daily logbook of the work of his/her assistants.
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	9. Making efforts to foster communal harmony and goodwill among inmates in his/her rehabilitation center and ensuring that no inmate is subjected to discriminatory treatment on account of caste or community. 10. Granting casual leave to staff in his/her rehabilitation center. 11. Using the premises of the rehabilitation center for lawful purposes as per directions of the Department, and generally providing all assistance to organize various programs smoothly as per management requirements and especially Departmental requirements. 12. Arranging meetings of the Rehabilitation Center Committee. 13. Supplying all information called for by the Government Department from time to time, well in time. 14. Ensuring proper care of all assets of the rehabilitation center, and maintaining the building of the rehabilitation center clean and tidy. In case of any loss/damage to property, informing the appropriate authority. 15. Keeping service books of staff in the rehabilitation center updated and making entries in service books at specified intervals. 16. Assisting the management in preparing and maintaining the seniority list of staff in the rehabilitation center. 17. Maintaining confidential reports of staff and communicating adverse remarks to employees.
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	18. Ensuring pension documents of employees are prepared and submitted to the concerned authority personally, and taking responsibility for the same. 19. Bringing to the notice of the Rehabilitation Center Committee the factual situation as to whether the number of staff members in the rehabilitation center is adequate as per rules, and resolving any deficiencies as quickly as possible, performing other duties regarding training, and following instructions. Duties regarding financial matters :- 1. Signing salary bills of employees and submitting them to the concerned competent authority for payment. 2. Preparing monthly bills of the rehabilitation center, verifying them properly, signing them, and submitting them to the concerned District Social Welfare Officer before the specified date. 3. Preparing proper supplementary demands of staff in the rehabilitation center, verifying and signing them, and submitting them to the concerned District Social Welfare Officer before the specified date. 4. Promptly deducting recovery amounts from employees' salaries after receiving bills or salary pay-sheets or supplementary pay-sheets from the concerned District Social Welfare Officer. 5. Maintaining the cash book of the rehabilitation center, updating it daily, and attesting it. 6. Promptly replying to audit notes of the Department as well as the Audit Department.
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2)	Office Assistant	1. Keeping all training-related and administrative records updated in initiatives. 2. Keeping records and entries of inmates updated. E.g., maintaining admission register, discharge card, attendance register, training equipment, and stock register of heavy goods, and other incidental records in the center. 3. Inward-Outward register, typing, correspondence, etc. 4. Performing all work of the Accountant post in schools where the post of Accountant is not sanctioned or is vacant due to any reason. 5. Performing other office work as per directions of the School Committee / Headmaster.
3)	Social Worker	1. Establishing coordination with the Superintendent and concerned Vocational Instructor regarding inmates admitted to the rehabilitation home, conducting case studies of inmates, and preparing case files. 2. Counseling inmates and/or their relatives, and explaining the importance of skill training and rehabilitation. 3. Providing information about the rehabilitation initiative to social service individuals, organizations, and society. 4. Counseling inmates with a view to eliminating undesirable habits and misconduct noticed during counseling. 5. Extending benefits of various Government Department schemes to inmates, e.g., railway pass, bus pass, disability identity card, medical certificate, scholarship, legal guardianship, Niramaya health insurance, Aadhaar card, etc. 6. Contacting industrial units and other employers to provide employment and self-employment opportunities to inmates.

		7. Providing artificial limbs, hearing aids, etc., to inmates (if the concerned inmate possesses disability as per the provisions of the Rights of Persons with Disabilities Act in addition to mental illness) with the help of Government and various non-governmental organizations. Performing other training initiative work as per directions of the Rehabilitation Center Committee / Head of Rehabilitation Home.
4)	Vocational Instructor	1. Imparting training to inmates as per trade suggested by Social Worker / Counselor / Semi-Medical Officer. 2. Maintaining training notes / records. 3. Conducting skill-based practical examinations according to the requirement of the trainee. 4. Conducting examinations for unskilled trades and keeping records. 5. Enrolling trainees for skilled trade examinations conducted through the Vocational Education Department / Equivalent Board of Examinations, and getting their preparation done. 6. Providing training and guidance to trainees from the viewpoint of employment and self-employment. Making special efforts for employment, self-employment, and rehabilitation of trainees. 7. Taking care that no injury is caused to inmates due to training equipment/machinery while imparting training. 8. Actively participating in the sales mechanism of products created in the training center. 9. Providing progress reports of trainees to their parents. 10. Working as per instructions of the Head of the Rehabilitation Home.

5)	Trained Caregiver	Taking care of inmates in the rehabilitation center, protecting them, maintaining cleanliness, helping them as required considering their needs, helping them go to restrooms and toilets, keeping the premises of the rehabilitation home clean, handing over complete charge of all inmates to the employee coming on duty after completion of shift duty, making entries of present inmates in duty register, and leaving the center only after handing over charge. Uncomplainingly performing duties assigned by the Head of the Rehabilitation Home from time to time.
6)	Helper	Maintaining daily cleanliness of bathrooms, restrooms, building, and premises in the rehabilitation home. Cleaning dirt/mess caused by inmates on time. Uncomplainingly performing duties assigned by the Head of the Rehabilitation Home from time to time.
7)	Psychiatrist	1. Implementing behavioral improvement programs regularly for inmates. 2. Conducting individual and group counseling of inmates. 3. Keeping inmate-wise case files updated. 4. Doing encouraging work according to the individual needs of inmates. 5. Organizing various programs to reduce problematic behavior among inmates and increase favorable behavior. 6. Guiding inmates and staff regarding behavior. 7. Implementing skill-based training programs for inmates. 8. Performing semi-medical work determined by the Head of the Rehabilitation Home.
8)	Occupational Therapist	1. Conducting physical examination of inmates and carrying out necessary occupational therapy regularly as per medical advice.

		2. Arranging to provide necessary assistive devices and artificial limbs, etc. to reduce disability according to personal needs of inmates. 3. Imparting training to inmates regarding use of assistive devices and artificial limbs, etc. as per requirement. 4. Maintaining upkeep of assistive devices and artificial limbs and ensuring that they are regularly used by inmates. 5. Coordinating with instructors and striving for mobility development of inmates. 6. Conducting regular therapy and keeping records of incidental progress of inmates. 7. Contacting medical experts, maintaining coordination, and getting corrective surgery done for disability if required for inmates. 8. Making special efforts from the perspective of physical and mental rehabilitation of inmates. 9. Performing work regarding other training initiatives as per directions of the Head of the Rehabilitation Home.
9)	Watchman / Guard / Security Guard (Preferably female staff if female inmates are present.)	1. Looking after the maintenance of the building and premises of the rehabilitation home. 2. Taking full security-related responsibility of resident inmates. 3. Protecting property of the rehabilitation home from theft and damage. 4. Maintaining gate register logbook at night, recording entry and exit of persons visiting/leaving the rehabilitation home. 5. Restricting unauthorized persons from entering the rehabilitation home. 6. Patrolling the premises of the rehabilitation home at night and giving security signals. 7. Taking personal care of inmates at night.

		8. Preventing illegal activities in the premises of the rehabilitation home. 9. Keeping watch over premises through CCTV. 10. Restricting inmates in the rehabilitation home from leaving the home without authorization. 11. Immediately informing the Head of the Rehabilitation Home regarding any improper incident concerning inmates. 12. Uncomplainingly performing duties assigned by the Head of the Rehabilitation Home from time to time.
10)	Cook	1. Preparing milk, breakfast, and balanced meals on time as per standard for resident inmates in the rehabilitation home according to daily schedule timetable. 2. Doing necessary preliminary preparation for preparing milk, breakfast, and meals. 3. Regularly cleaning utensils used for preparing and serving food. 4. Serving food to inmates with the help of Cook Helper, and cleaning their dining plates, bowls, glasses, etc. Also keeping kitchen room and dining hall clean. 5. Arranging clean water for inmates during meal time. 6. Taking care that food stock and vegetables remain clean and fresh. 7. Sorting and cleaning grains, pulses, lentils, vegetables, etc. before preparing food. 8. Maintaining proper care of gas, stoves, etc. required for preparing food. 9. Preparing special food for sick inmates as per doctor's advice. 10. Taking timely precaution to store adequate food grains as required for inmates.

Government Resolution No: Divyang-2019/C.R.103/Divyang Kalyan-2.

		11. Uncomplainingly performing duties assigned by the Head of the Rehabilitation Home from time to time.
11)	Cook Helper	1. Performing all necessary assistant duties in connection with the work of Cook post and helping the cook staff member in work. 2. Uncomplainingly performing duties assigned by the Head of the Rehabilitation Home from time to time.

Digitally signed by VISHNUDAS PUNDLIKRAO GHODKE

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(V. P. Ghodke)

Deputy Secretary, Government of Maharashtra

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